MASTER SERVICE AGREEMENT

Valfin Tech — Revenue Operations Infrastructure

READ THIS FIRST — ATTORNEY REVIEW REQUIRED BEFORE FIRST SIGNATURE

This Agreement is a structured, professional starting draft — not a substitute for review by a licensed attorney in your jurisdiction. Fill in every [BRACKETED] field with real values before sending. At minimum, have an attorney review Sections 8 (Limitation of Liability & Disclaimers), 5 (Data & Privacy), 6 (Compliance), 10 (General Provisions — Governing Law & Assignment) before the first client signs. Until that review is complete, treat this as a professional, considered draft — not a finalized legal instrument.

Agreement Overview

Field	Value
Provider	Valfin Tech ("Provider," "we," "us")
Client	[CLIENT LEGAL BUSINESS NAME] ("Client," "you"), located at [CLIENT ADDRESS]
Effective Date	[DATE]
Engagement Tier	[Foundation / Growth / Built for you] — see the attached Statement of Work for the exact scope included
Primary Client Contact	[NAME, TITLE, PHONE, EMAIL]
Primary Provider Contact	[FOUNDER NAME, PHONE, EMAIL]

1. Services Provided

Provider will design, configure, deploy, and maintain an automated lead-response and pipeline-management system (the "System") for Client's business, consisting of the workflows and capabilities specified in the Engagement Tier above and in the attached Statement of Work. The System will be configured specifically for Client using information Client provides via Provider's onboarding intake process, including but not limited to: business identity and contact details, service hours and booking parameters, lead-handling preferences, and brand voice for customer-facing communications.

What Provider does NOT do under this Agreement (called out explicitly to prevent scope-creep disputes later):

- Generate leads or run advertising campaigns on Client's behalf
- Provide legal or regulatory compliance advice beyond the standard recommendations referenced in Section 6
- Develop custom features beyond the Engagement Tier's scope without a separate Change Request (Section 9)
- Guarantee any specific volume of leads, bookings, or revenue (see Section 8)

2. Fees & Payment

Item	Amount	When Due
One-time setup fee	$[AMOUNT]	Due before configuration work begins; non-refundable once work commences (see §2a)
Recurring platform fee	$[AMOUNT] / month	Billed monthly in advance, beginning on the go-live date
[Add-on fees, if any — per the “Built for you” menu]	$[AMOUNT] / month	[Terms]

§2a — Why the setup fee is non-refundable once work begins:
It covers genuinely non-recoverable labor and third-party processes — most notably the carrier (Twilio A2P 10DLC / toll-free) verification process, which involves submitted paperwork and waiting periods that cannot be “undone” once started. This is explained to the Client plainly and in person before signing, not discovered as fine print later.

Late payment:

A late fee of $[AMOUNT] or [X]% applies to payments more than [Y] days overdue. Provider may suspend System operation for accounts more than [N] days delinquent, with [M] days' written notice.

3. Term & Termination

- This Agreement begins on the Effective Date and continues month-to-month following go-live.
- Either party may terminate with 30 days' written notice.
- Upon termination, Client's data will be exported and delivered per Section 5, and any prorated fees will be [specify treatment].
- Provider may terminate immediately for: non-payment beyond [N] days, Client's material breach of Section 6 (Compliance), or Client's misuse of the System in a manner that risks Provider's standing with third-party providers (e.g., generating carrier complaints through misuse).

4. Client Responsibilities

Client agrees to:

- Provide complete and accurate information via the onboarding intake process, and update Provider promptly if any of that information changes (e.g., business hours, owner contact number, service offerings)
- Maintain their own accounts in good standing with required third parties (Twilio, Google) where Client-owned credentials are used
- Designate a primary point of contact for onboarding, go-live approval, and ongoing support communications
- Ensure that Client's own customer-facing intake channels (website forms, paper intake sheets, etc.) collect proper consent for automated text-message communication. Provider will supply standard consent-language recommendations (see Section 6), but Client's forms are Client's responsibility to update and maintain

5. Data & Privacy

- Client owns all of its business data — leads, customer records, communication logs, appointment history — for the full duration of this Agreement and after its termination.
- The System stores Client's data in a dedicated Google Sheet (or successor CRM) that Client can access directly at any time; Provider does not claim ownership of, or any independent right to use, Client's business or customer data beyond what is necessary to operate the System.
- Upon termination, Provider will export and deliver Client's complete data in a standard format (e.g., spreadsheet export) within [N] business days, and will deactivate/delete Provider-side copies within [M] days thereafter, except as required for legal/financial recordkeeping.
- [Add any jurisdiction-specific data-protection clauses your attorney recommends — e.g., state privacy law references, breach-notification timelines]

6. Compliance — SMS, TCPA, and Carrier Rules

Both parties acknowledge that automated text messaging to customers is subject to telecommunications regulations (including the U.S. Telephone Consumer Protection Act and individual carrier rules) that require, among other things, documented customer consent to receive messages and honoring opt-out requests.

- Provider's commitment: the System includes built-in safeguards — including standalone opt-out keyword detection that silently suppresses any automated reply to likely opt-out messages (STOP, UNSUBSCRIBE, etc.) — as a defense-in-depth measure alongside carrier-level protections. Provider will also supply Client with standard consent-language recommendations for Client's intake forms.
- Client's acknowledgment: Client is responsible for ensuring that consent is properly collected through Client's own customer touchpoints, and for promptly informing Provider of any regulatory complaint or carrier notice it receives related to System-generated messages.
- Shared responsibility, not finger-pointing: this section exists so both sides know exactly where their responsibility starts and ends — not to create a blame mechanism.

7. Intellectual Property

- Provider retains all rights, title, and interest in the underlying System — its workflows, templates, prompts, and configuration architecture — including all improvements made generally across Provider's client base.
- Client receives a non-exclusive license to use their specifically-configured instance of the System for the duration of this Agreement.
- Client's own business data, brand assets, and any custom copy/voice guidance they provide remain Client's property (see Section 5).

8. Limitation of Liability & Disclaimers

This is the section most likely to need real attorney customization for your jurisdiction — what follows is a structural placeholder, not language to use verbatim.

- The System depends on third-party infrastructure (Twilio/carriers for SMS delivery, Google for data storage and email delivery, Anthropic for AI-based message generation) that is outside Provider's direct control; Provider does not guarantee uninterrupted delivery or availability of these third-party services.
- Provider does not guarantee any specific number of leads, bookings, conversions, or amount of revenue — the System is a tool that improves response speed and consistency; business outcomes

depend on many factors outside the System's control (market conditions, Client's pricing, crew availability, etc.).

- Provider's total liability under this Agreement shall not exceed the fees paid by Client in the [3/6/12] months preceding the claim. [Set with attorney input.]
- [Standard disclaimer of warranties language — to be set with attorney input]

9. Support, Maintenance & Change Requests

Included in the monthly platform fee:

- Standard maintenance: credential health checks, schedule-trigger verification, delivery monitoring
- Best-effort support response within [N business days] for non-urgent issues; [same-business-day / X-hour] response for system-down issues
- [If selling a “priority support SLA” add-on, define its specific terms here or in an attached schedule]

Any work beyond the Engagement Tier's defined scope (new workflows, integrations, additional locations, etc.) requires a signed Change Request Form, which will specify the additional fee (if any) and timeline before work begins.

10. General Provisions

- Governing law: This Agreement is governed by the laws of the State of [STATE]. [Set this with your attorney.]
- Entire agreement: This Agreement, together with any attached schedules (Statement of Work, pricing tier details, SLA terms), constitutes the entire agreement between the parties regarding the System.
- Amendment: Changes to this Agreement — including changes to the Engagement Tier, fees, or scope — must be in writing and signed by both parties, using the Change Request Form where applicable.
- Assignment: [Standard assignment clause — to be set with attorney input]
- Electronic signatures: Either party may sign this Agreement electronically, and an electronic signature is valid and binding just like a handwritten one.

Signatures

By signing below, both parties agree to the terms of this Master Service Agreement.

Valfin Tech	**[CLIENT LEGAL BUSINESS NAME]**
Signature: ______________________________	Signature: ______________________________
Name: ______________________________	Name: ______________________________
Title: ______________________________	Title: ______________________________
Date: ______________________________	Date: ______________________________

Operator Notes (delete before sending to a client)

1. Fill every [BRACKETED] field with real values — pull the Engagement Tier and fees directly from the internal pricing reference, scoped to this client's actual situation (never improvise “custom” pricing without scoping it first).

2. Send to an attorney before the first real signature — ideally in parallel with the first sales conversations. A flat-fee contract review from a small-business attorney protects every future engagement, not just this one.

3. Once reviewed and finalized, this becomes the standard agreement referenced in the Client Lifecycle Playbook — Phase 1 (Client says yes).

4. Pair this Agreement with the attached Statement of Work, which defines the exact scope, deliverables, and timeline for this engagement.